

The Law of Moses Next to the Laws of Babylon

Hammurabi's stele and the Torah speak the same legal language. What they say in that language could not be more different.

THE DISCOVERY

A Black Pillar in the Louvre

In 1901 French archaeologists digging at Susa, in modern Iran, uncovered a black diorite pillar over seven feet tall, covered in cuneiform. It was the law collection of Hammurabi, king of Babylon, carved around 1754 BC, centuries before Moses on any reckoning. It now stands in the Louvre. At the top, the sun god Shamash, patron of justice, commissions the king to establish right in the land.

The discovery unsettled people. Here were laws about goring oxen, about assault, about false witness, that read like cousins of the laws in Exodus. Some concluded that Moses had simply borrowed from Babylon and the Torah lost its claim to revelation. Others refused to look at the parallels at all, as if the comparison itself were a threat.

Both reactions miss what is actually there. The Torah speaks the legal language of its world, and inside that shared language it says things the rest of that world was not saying. To see the difference you have to read both columns. Most of us have only read one, and we have read it with modern courtroom assumptions it was never built to carry.

COMMON GROUND

If a Man. Then This.

The shared ground is real. Ancient Near Eastern law speaks in cases. If a man does this, then that follows. Scholars call the form casuistic, and the Covenant Code in Exodus 21 and 22 uses it constantly. If an ox gore a man or a woman, that they die, then the ox shall be surely stoned. Hammurabi has laws on the same subject. So does the older collection from the city of Eshnunna. The fact pattern of the goring ox was apparently the ancient world's standard legal classroom, worked over by scribes from culture to culture.

This should not trouble anyone. Israel lived in that world, farmed in that world, and sued its neighbors in that world. When God addressed Israel, he spoke in forms Israel could recognize, the way Scripture everywhere takes up the language of its hearers rather than inventing a vocabulary from nowhere.

Revelation did not require Israel to stop sounding like the ancient Near East. It required the ancient Near East's forms to start carrying a different God.

THE DIFFERENCES

One Standard, and a Reason Attached

Set the collections side by side and the differences begin to preach.

Hammurabi grades justice by class. His collection sorts society into free men, commoners, and slaves, and the penalty for the same injury changes with the rank of the victim. Put out the eye of a free man and you lose your eye. Put out the eye of a commoner and you pay silver. The Torah, in principle, refuses this. Ye shall have one manner of law, as well for the stranger, as for one of your own country. Israel did not always live that principle, and neither have we, but it stands in the text like a judgment on every society that prices people by rank.

The Torah also treats human life as beyond purchase. Mesopotamian practice often allowed money to settle a killing. Numbers 35 forbids any ransom for the life of a murderer, because human beings bear the image of God and blood cannot be converted into currency.

Then the strangest difference of all. The Torah gives reasons, and the reasons are memories. Thou shalt not oppress a stranger, for ye were strangers in the land of Egypt. Hammurabi never talks like that. Israel's law keeps reaching back to the exodus and up to the character of God. The widow, the orphan, and the stranger are protected because the Judge of all the earth remembers what slavery cost, and commands his people to remember with him.

REFRAMING

Not a Statute Book

Here is a detail that reframes everything. In the thousands of Mesopotamian court records that survive, judges do not appear to cite Hammurabi's collection as binding statute. The scholar Jean Bottero and others have argued that the stele was closer to a monument of royal wisdom, a portrait of the just king for the gods and posterity, than a comprehensive code applied clause by clause.

The Torah is not a comprehensive code either. It does not address most situations an Israelite court would actually face. It is selective, illustrative, and woven into narrative, aimed at forming the judgment of a people rather than exhausting every case. It teaches judges and farmers what justice looks like when the God of the exodus is your King, and it trusts them to extend the pattern.

That is why Psalm 119 responds to the law with love, delight, and meditation rather than compliance. The law was covenant wisdom. It was the character of God worked out in field and market and courtroom, given to a people he had already redeemed, so that their common life would tell the truth about him.

THE WEIGHT

We Grade the Ancients. The Law Grades Us.

Reading Moses next to Hammurabi closes off two comfortable habits. You cannot dismiss the Torah as primitive once you have seen what it refused that its whole world took for granted. And you cannot read it as a timeless statute book dropped from the sky once you have seen the ancient form it shares with its neighbors.

What you are left with is harder and better. A law with reasons, and the reasons have your name in them. For ye were strangers. The measure of a society, in this law, is not its monuments but its treatment of the people with no power to repay.

We are quick to grade the ancient world from a safe distance. The law keeps grading us. It asks what our courts cost the poor, what our markets do to the stranger, what we remember and what we have decided to forget. It asked Israel. It has not stopped asking.

KEY TEXTS

Exodus 21:28-32

Leviticus 19:33-34

Deuteronomy 10:17-19

SOURCES

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